

## State vs Amit on 28 May, 2025

IN THE COURT OF SH. KUMAR RAJAT,  
ADDL. SESSIONS JUDGE-07, SHAHDARA DISTRICT,  
KARKARDOOMA COURTS, DELHI

IN THE MATTER OF :  
CNR No. DLSH01-003853-2019  
SC No. 271/2019  
FIR No. 76/2019  
PS Nand Nagri  
U/s 498A/304B IPC

STATE  
Vs.  
AMIT,  
S/o Sh. Vishnu,  
R/o H.No. E-57/661/64, Jhuggi,  
Sunder Nagri, Delhi,

..... Accused

|                                    |            |
|------------------------------------|------------|
| Date of Institution of case        | 07.06.2019 |
| Date of case reserved for Judgment | 27.05.2025 |
| Judgment Pronounced on             | 28.05.2025 |
| Decision                           | Acquitted  |

### JUDGMENT

#### BRIEF FACTS OF THE CASE

1. As per the case of prosecution, on 05.02.2019, on receipt of DD No. 16A, ASI along with Ct. Sonu Bhati reached the spot at E-57/661/64, Sunder Nagri, Delhi where main gate was found locked and it came to their knowledge that Manju, w/o Amit Kumar had committed suicide on the first floor by hanging from ceiling fan with the help of chunni and the injured was taken to GTB Hospital by the accused.

KUMAR RAJAT RAJAT Date:

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2. The deceased was pregnant and doctor had opined that it was the case of alleged hanging and SDM, Seema Puri was informed and crime team was called at the spot and Executive Magistrate Atul Ramchiary also inspected the spot and recorded the statement of father of deceased Manju namely Prempal, who alleged that he was resident of Sunder Nagri, Delhi and he had married his daughter Manju with accused Amit Kumar on 18.04.2018 and gave the articles as per his capacity and both Anju and Amit liked each other prior to marriage and that is why he married his daughter to him, but she was not happy at her matrimonial home and accused Amit used to beat and harass her for dowry and demanded bullet or Rs. 2 Lakhs from her and used to threaten her that he would get kidnapped her brother. On 05.02.2019 at 9.30 AM, his daughter Manju told his wife Mamta on

phone that accused Amit was beating her and the mother called her to her home, but she was not allowed to go to her parental home and Manju told that she was confined in the home and when there was hue and cry in the neighbourhood, then they came to know about the said incident as the matrimonial house of deceased was nearby.

The deceased expired in the GTB Hospital on 05.02.2019 at 6.30 PM and her inquest was prepared and postmortem was done.

3. On the complaint of the complainant, the FIR was registered vide FIR No. 76/2019, dt. 26.02.2019 in PS Nand Nagri u/s 498A/304B IPC. After investigation, charge-sheet was filed against the accused Amit u/s 498A/304B IPC and after KUMAR by KUMAR RAJAT RAJAT 2025.05.28 Date:

16:58:29 +0530 filing of charge-sheet, cognizance of offence was taken against the accused.

#### CHARGE

4. Charge for the offences punishable u/s 498A/304B IPC was framed against the accused Amit by the Ld. Predecessor on 04.09.2019. Accused pleaded not guilty and claimed trial.

#### ADMISSION/DENIAL OF DOCUMENTS

5. Admission/denial of documents u/s 294 Cr.PC was conducted on 08.11.2024. Accused and his counsel admitted the following documents:

(a) FIR No. 76/2019 dated 26.02.2019, Ex.PA1,

(b) Certificate u/s 65B Indian Evidence Act regarding FIR No. 76/2016 dated 27.02.2019, Ex.PA2 ,

(c) DD No. 114B dated 01.11.2018, Ex.PA3.

In view of the above-said admission, the requirement of evidence of following witnesses was dispensed with :

Sl. No. Name of the witnesses

1. ASI Naresh Kumar (at Sl. No.16 in list of witnesses)

2. ASI Radhey Shyam (at Sl. No. 20 in list of witnesses) PROSECUTION EVIDENCE

6. Prosecution examined twenty two (22) witnesses in its favour to prove the case.

7. PW1 Prem Pal deposed that his daughter Manju was married to accused Amit on 18.04.2018 as per Hindu Rites and Customs and he had given household articles and gold jewellery in the said marriage. After the marriage, his daughter started living at her matrimonial home, which was situated in the same locality. The other family members i.e., her parents-in-laws were KUMAR by KUMAR RAJAT RAJAT 16:58:34 Date: 2025.05.28 +0530 also residing in the said matrimonial home. Whenever she used to visit her parental home, she used to interact with her mother and complain to her about the torture and beating by accused Amit to her as he was not satisfied with the articles given in the marriage and he used to demand Bullet motorcycle or Rs.2 Lakhs and threaten his daughter that he would kidnap or kill her brother. Due to those threats, his daughter remained afraid of accused Amit Kumar.

8. PW1 further deposed that on 05.02.2019, he was not present at home, but at his work, his daughter made a phone call to her mother at about 9.30 AM and told that she was beaten by accused Amit. PW1 was informed by his wife about the said incident, then, he returned his home, but on the way to his home, he came to know from the residents of locality that his daughter had been taken to the hospital by accused Amit and his family members and his daughter seemed to be dead.

9. PW1 further deposed that he along with his wife reached at GTB Hospital and found his daughter on ventilator and he noticed that blood and froth was coming from her mouth. She was declared dead at about 6 pm by the doctor. At that time, accused Amit along with his family members were also present in the hospital. The dead body of his daughter was kept in the Mortuary for postmortem. On next day, his statement, Ex.PW1/A was recorded in the Mortuary. At that time, his wife was also present with him when his statement was recorded and she had also signed the statement. On 07.02.2019, he received the dead body of his daughter vide memo Ex.PW1/B. PW1 correctly KUMAR by KUMAR RAJAT RAJAT 16:58:39 Date: 2025.05.28 +0530 identified accused Amit in the Court.

10. PW2 Mamta deposed that her deceased daughter Manju was married to accused Amit on 18.04.2018 as per Hindu Rites and Customs. She had given dowry articles to her deceased daughter as per her financial status. Accused Amit was in their distant relation and used to visit their house prior to marriage. After marriage, deceased was taken to her matrimonial house at Sundar Nagri. Accused Amit was pressurizing her daughter for demand of a bullet motor cycle or cash amount of Rs. 2,00,000/-. She was given beating by accused Amit for not meeting out said demand. Accused Amit used to threaten the deceased that if his demand was not met out, he would get his son kidnapped.

11. PW2 further deposed that she received a telephonic call of her deceased daughter Manju at around 09:30 AM and she informed her that accused Amit was quarreling and beating her. She told her daughter to return to her house and her deceased daughter told her that she had been confined by accused Amit in house and she was not allowed to go outside. After about one hour, she heard "shor sharaba gali mein ho raha tha". The persons of the locality informed her that her daughter had been taken to hospital. Accused Amit did not inform her about the incident. PW2 alongwith her husband went to GTB Hospital and when she reached there, her daughter was under treatment and she was on oxygen bed and she was not in a position to speak.

12. PW2 further deposed that at about 05:30 PM, she was declared dead in the hospital by the doctor. She alongwith her husband remained in the hospital whole day. Her daughter was KUMAR RAJAT RAJAT Date:

2025.05.28 16:58:44 +0530 having pregnancy of about 07 months at the time of incident. After three days of incident, the police handed over body of her deceased daughter after postmortem. Accused Amit had committed murder of her daughter. PW2 admitted in the cross- examination of Ld. Addl. PP that she received call from her deceased daughter at about 09:30 AM on 05.02.2019 and she could not tell the date of receipt of call in her chief-examination as she was illiterate. PW2 correctly identified accused Amit in the Court.

13. PW3 Ashok deposed that he was residing at E-57/661, Sunder Nagri, Delhi with his family members and knew accused Amit Kumar being his neighbour. He did not remember the date and year, but about 2-3 years back, at about 11:00 AM, he was present at his house and when he came out, he heard hue and cry and the noise was coming from the house of accused Amit. On hearing the same, he rushed to his house and saw from the mesh door of the room that wife of accused Amit was hanging on a ceiling fan with the help of chunni and the door was locked from inside. Accused Amit requested them to help him to open the door. Some other neighbours were also present at that time.

14. PW3 further deposed that with the help of other persons, who were present there, they broke open the door. Accused Amit immediately with the help of them got released his wife and she was put down from the ceiling fan and when she was put down from the ceiling fan, PW3 noticed that she was breathing at that time and she was immediately taken to GTB Hospital by accused Amit. Later on, police made inquiry from KUMAR Digitally signed by KUMAR RAJAT RAJAT 16:58:50 +0530 Date: 2025.05.28 him and he narrated the above facts to the police. PW3 admitted in the cross-examination of Ld. Addl. PP that on 05.02.2019, he heard the hue and cry from the house of accused Amit. PW3 correctly identified accused Amit in the Court.

15. PW4 Dr. Madhusudan Verma, Senior Medical Officer, GTB Hospital, Delhi deposed that on 05.02.2019, he was posted as CMO at GTB Hospital (Casualty Department). On that day, at about 11:35 AM, patient Manju W/o Amit was brought by accused Amit with alleged history of hanging at around 11:00 AM on 05.02.2019 at H. No. E-57-661/64, Sunder Nagri, Delhi. On examination a ligature mark around the neck was present and patient was drowsy and unfit for statement at the time of examination. Patient was given primary management and was referred to Neurosurgery department for further treatment. The MLC bearing no. B-0446/04/19, Ex.PW4/A was prepared by Dr. Rehmat Ullah (JR) under his supervision. PW4 was acquainted with the handwriting and signature of Dr. Rehmat Ullah as he had worked with him in the hospital in casualty department.

16. PW5 W/ASI Prakash deposed that on 05.02.2019, he was posted as HC at PS Nand Nagri. On that day, he was working as Duty Officer and her duty hours from 08:00 AM to 04:00 PM. On that day at about 10:57 am, she registered the GD No. 16A, Ex.PW5/A. On that day at about 11:03 AM, he also registered the GD No. 17A, Ex.PW5/B.

17. PW6 Retd. Rajinder Singh deposed that on 05.02.2019, he was posted as Incharge Mobile Crime Team, North-East District, Delhi. On that day, after receiving call from KUMAR by KUMAR RAJAT RAJAT 2025.05.28 Date:

16:58:54 +0530 control room, he along with HC Shri Bhagwan, Photographer went to the spot i.e. E-57/66/64, 1 st Floor, Jhuggi, Sundar Nagri, Delhi where IO/SI Upender Singh along with staff was found present. Thereafter, at the instance of the IO, he inspected the spot and his photographer, HC Shri Bhagwan took the photographs of the spot from different angles. On the spot, two pieces of chunni (orange) and one scissors, which was used to cut the chunni, were found. PW6 prepared SOC report, Ex.PW6/A and handed over the same to the IO.

18. PW7 ASI Shri Bhagwan deposed that on 05.02.2019, he was posted as Photographer in Mobile Crime Team, North-

East District, Delhi. On that day, after receiving call from control room by SI Rajinder Singh, Incharge of the Mobile Crime Team, he along with SI Rajinder Singh went to the spot i.e. E-57/66/64, 1st Floor, Jhuggi, Sundar Nagri, Delhi where IO/SI Upender Singh along with staff were present. Thereafter, at the instance of the IO, SI Rajinder Singh inspected the spot and PW7 took 27 photographs of the spot from different angles from his digital camera. Subsequently, he handed over the photographs to the IO. 19 photographs are Ex.PW7/1 to Ex.PW7/19.

19. PW8 Rohit deposed that he was residing at Sunder Nagri, Delhi in February, 2019 and he knew accused Amit as he had seen him sitting outside the factory at F1 Block, Sunder Nagri, Delhi where he was working as tailor. Some times, accused Amit used to talk to him. Accused Amit was residing in front of abovesaid factory, but he did not remember his address. On 05.02.2019, he was inside his factory and he heard noise KUMAR RAJAT RAJAT Date:

2025.05.28 16:58:59 +0530 coming from outside. Then, he went to the house of accused Amit situated at first floor and found the main gate/door of the room locked from inside.

20. PW8 further deposed that accused Amit was outside the said house with him and others and saying to open the gate and when gate/door did not open, then he along with some other persons broken open the iron gate with the help of hammer. Thereafter, they all including accused Amit entered inside the room and found that his wife was hanging from the ceiling fan with a chunni/dupatta. Accused Amit took his wife in his lap while hanging. On his instructions, PW8 cut the said chunni/dupatta through which she was hanging with the scissors, which was lying there. 'Jab unhe utara tab unme kuch saans thi, ye baat Amit Bhai ne mujhe batai. Maine bhi dekha tha ki wo saans le rahi thi'.

21. PW8 further deposed that accused Amit had taken his wife to the GTB hospital from an auto, but PW8 had not accompanied him to the said hospital and PW8 did not know, who had arranged the auto. 2-3 persons had accompanied accused Amit to hospital, but he did not know them. PW8

correctly identified 27 photographs as relating to the aforesaid gate/door, place of incident and aforesaid chunni/dupatta. The photographs from 1 to 19 are Ex. PW7/1 and from 20 to 27 are Ex. PW8/A (for the purpose of identification).

22. PW8 admitted in the cross-examination of Ld. Addl. PP that the name of the other person, who along with him and accused Amit, entered inside the abovesaid room was Murari and KUMAR by KUMAR RAJAT RAJAT 16:59:04 Date: 2025.05.28 +0530 the name of his wife was Manju. PW8 also admitted that accused Amit in his presence, pushed the iron door, which was situated on the stairs and the kundi of that door/gate got broken and the gate/door, about which he had stated above in his examination in chief was the gate/door of the room, in which his wife was found hanging. PW8 also admitted that he along with accused Amit and Murari took deceased Manju downstairs and his house was situated at E-57/661/64, Sunder Nagari, Delhi and the time when he heard the noise at about 11 AM. PW8 correctly identified accused Amit in the Court.

23. PW9 Atul Ramchiary deposed that on 06.02.2019, he was posted as Executive Magistrate, SDM Office, Seema Puri, Delhi. On the directions of Subhash Chand, SDM, Seema Puri, the inquest proceedings of the present case was marked to him. He visited the mortuary of GTB Hospital, where he met ASI Upender Singh, PS Nand Nagri, parents of deceased Manju. PW9 recorded the statement of Prem Pal (father of deceased Manju), Ex.PW1/A. He made endorsement on the said statement, Ex. PW9/A and handed over the statement to ASI Upender Singh for necessary action as per law.

24. PW9 Atul Ramchiary further deposed that he also visited the place of incident i.e. E-57/661/64, Jhuggi, Sunder Nagri, Delhi and the dead body of deceased Manju was identified by accused Amit and Prem Pal (father of deceased) and vide identification statements dated 06.02.2019, Ex.PW9/C and Ex.PW9/B. After postmortem on 07.02.2019, the dead body of deceased Manju was handed over to ASI Upender Singh vide KUMAR Digitally signed by KUMAR RAJAT RAJAT 16:59:09 +0530 Date: 2025.05.28 endorsement Ex. PW9/D on the request form of postmortem. The Form No. 25.35(1) (B) was also prepared by ASI Upender Singh, Ex. PW9/E.

25. PW10 ASI Suraj Prakash deposed that on 05.02.2019, he was posted as HC at ERSS, Police Control Room, Police Headquarter, Delhi. On that day, he was working as call attendant/taker and his duty hours were 8 AM to 2 PM. On that day at about 10.57 AM, one PCR call was received/attended by him and he transferred the same to Control Room, N/E District, Delhi. Accused Amit was the informant having mobile no. 8800267969. The copy of PCR form regarding the abvoesaid call is Ex.PW10/A.

26. PW11 SI Subhash Chander deposed that on 05.02.2019, he was posted as ASI at ERSS, Police Control Room, Police Headquarter, Delhi. On that day, he was working as call attendant/taker and his duty hours were 8 AM to 2 PM. On that day at about 11.03 AM, one PCR call was received/attended by him and he transferred the same to Control Room, N/E District, Delhi. The informant was Savitri with mobile no. 9650773023. The copy of PCR form regarding the abvoesaid call is Ex.PW11/A.

27. PW12 Reena deposed that she had studied from standard 6th to 10th with deceased Manju, D/o Sh. Prem Pal at Sarvodaya Kanya Vidyalaya, Nand Nagri, Delhi. Deceased Manju was her friend and she got married with accused Amit in the year 2018. PW12 admitted in the cross-examination of Ld. Addl. PP that love affair was going on between deceased Manju KUMAR RAJAT RAJAT Date:

2025.05.28 16:59:14 +0530 and accused Amit since class 6 th and they got married with each other. Identity of accused Amit was not disputed by his counsel.

28. PW13 Inspector Ravi Prakash deposed that in the month of April, 2022, he was working as Inspector Investigation at PS Nand Nagri. He collected the subsequent opinion dt. 08.08.2019, Ex.PW13/A (given by Dr. Shilpa Singh, GTB Hospital) from MHC(M) of PS Nand Nagri. He also collected CDR, CAF with requisite certificate u/s 65B Indian Evidence Act regarding the mobile numbers of deceased Manju i.e. 9582318290, deceased's father Prem Pal i.e. 9971274962 and her mother Mamta i.e. 9958439385 from the concerned service provider and on analyzing the same, he found that on 05.02.2019, deceased Manju had called at about 08:55 AM and 09:25 AM through her above said mobile phone to her father Prem Pal on his above said mobile number.

29. PW13 further deposed that he also found that on 05.02.2019, deceased Manju had called at about 07:52 AM and 10:12 AM through her above said mobile phone to her mother on her above said mobile number. After completion of investigation, he prepared the supplementary charge-sheet and submitted it before the court.

30. PW14 ASI Upender deposed that on 05.02.2019, he was working as ASI at PS Nand Nagri. On that day, on receiving DD No. 16A, Ex.PW5/A, he along with Ct. Sonu Bhati reached at the spot i.e. Jhuggi, E-57/661/64, Sundar Nagri, Delhi where the main gate of the above said jhuggi/house was found to be locked from outside. On interrogation, it was found that one lady had committed suicide by hanging and she had been taken to GTB Hospital, Delhi. He went to the GTB Hospital leaving the KUMAR RAJAT RAJAT Date:

2025.05.28 16:59:19 +0530 Ct. Sonu Bhati at above said house. PW14 reached at GTB Hospital and collected the MLC of Manju W/o Amit and she was declared unfit for statement as per the doctor. At the hospital, parents of lady namely Prem Pal, Mamta, father-in-law Vishnu and accused Amit were present.

31. PW14 further deposed that he interrogated all of them. The father of that lady disclosed that accused Amit used to torture his daughter Manju @ Monika and only 9 months had lapsed since her marriage with him. Thereafter, he returned to the aforesaid spot along with accused Amit and his father Vishnu. He gave information to the SDM Seemapuri through mobile phone and also called the crime team at the spot. Accused Amit and his father opened the main gate of aforesaid jhuggi/house. Thereafter, they i.e. PW14, Ct. Sonu Bhati, Crime Team Staff, accused Amit and his father, public person Ashok, Rohit and others went upstairs and found that the door (iron gate) of the room at the 1st floor was in folded/bended condition from one side (bottom).

32. PW14 further deposed that the gate was opened and they saw that one piece of dupatta/chunni (colour narangi) was hanging with ceiling fan and other piece of dupatta/chunni was lying on the floor. One knife/scissors was also lying in the room (with yellow colour handle). PW14 seized the same vide seizure memo, dt. 05.02.2019, Ex.PW14/A. Executive Magistrate Atul Ramchiary, Seemapuri also came and inspected the spot and also inquired from the public persons and parents of deceased. The dead body of deceased Manju was preserved at the Mortuary of KUMAR by KUMAR RAJAT RAJAT Date: 2025.05.28 16:59:23 +0530 GTB Hospital as she got died in the evening of 05.02.2019.

33. PW14 further deposed that on 06.02.2019, the dead body of deceased Manju was identified by accused Amit and father of deceased namely Prem Pal vide identification statements, Ex.PW9/C and Ex.PW9/B. PW14 correctly identified two pieces of dupatta/chunni (colour narangi), Ex.P1 as being the same pieces of dupatta/chunni, which was seized by him vide seizure memo, Ex.PW14/A. PW14 also correctly identified scissors with yellow grip, Ex.P2 as being the same scissors, which was seized by him vide seizure memo, Ex.PW14/A.

34. PW14 further deposed that on 06.02.2019, Executive Magistrate Atul Ramchiary recorded the statement of father of deceased namely Prem Pal and handed over the same to him for necessary action. PW14 prepared the request for postmortem of deceased Manju, Ex.PW9/D. Postmortem of deceased could not be done on that day. Public persons namely Murari, Rohit and Ashok also helped in opening the iron gate. Ashok managed to enter inside the room and then opened the latch from inside. PW14 correctly identified 19 photographs, Ex.PW7/1 to Ex.PW7/19 as being of the above said spot and the dupatta/chunni and ceiling fan.

35. PW14 further deposed that on 07.02.2019, the postmortem of deceased Manju was done and after postmortem, her dead body was handed over to accused Amit and father of deceased namely Prem Pal vide handing over memo, Ex.PW14/B and Ex.PW1/B. The DD entry No. 16A was kept pending and on 26.02.2019, after receiving PM Report, PW14 prepared the Digitally signed by KUMAR KUMAR Date:

RAJAT RAJAT 2025.05.28 16:59:28 +0530 rukka, Ex.PW14/C and got registered the FIR No. 76/2019 dt. 26.02.2019 through DO. After registration of FIR, the further investigation was marked to Insp. Awtar Singh Rawat. PW14 correctly identified accused Amit in the court.

36. PW15 ASI Naresh Kumar deposed that on 26.02.2019, he was posted as ASI at PS Nand Nagri. On that day, he was working as duty officer from 04:00 PM to 12 midnight. At about 11.40 PM, ASI Upender came at the PS and handed over him a Rukka for registration of FIR. He made endorsement, Ex. PW15/A, on the Rukka, vide DD No. 87A. Thereafter, he registered the FIR bearing No. 76/2019, Ex. PW15/B (OSR) and handed over the original Rukka and copy of FIR to SHO/Inspector Avtar Singh Rawat as further investigation was marked to him. PW15 also issued Certificate u/s 65B Evidence Act regarding the registration of FIR, Ex. PW15/C.



37. PW16 Surender Kumar deposed that he was working as Nodal Officer at Bharti Airtel Ltd., since 2015. He had brought the CAF of mobile no. 9971274962, which was issued in the name of Prem Pal S/o Tulsi Ram r/o E-57 A-235, Jhuggi, Sundar Nagri, Delhi, Ex.PW16/A. The CDR of above said number of 05.02.2020 is Ex.PW16/B. He had also brought the CAF of mobile no. 9958439385, which was issued in the name of Prem Pal S/o Tulsi Ram r/o E-57 A-235, Jhuggi, Sundar Nagri, Delhi, Ex.PW16/C. The CDR of above said number of 05.02.2020 is Ex.PW16/D. He had also brought the CAF of mobile no.

9990902841, which was issued in the name of Mamta W/o Prem Pal r/o E-57 A-235, Jhuggi, Sundar Nagri, Delhi, Ex.PW16/E. The CDR of above said number of 05.02.2020 is Ex.PW16/F. KUMAR by KUMAR RAJAT RAJAT 2025.05.28 Date:

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38. PW16 further deposed that he had also brought the CAF of mobile no. 8800257969, which was issued in the name of Amit S/o Bisnu r/o E-57/661/64, Jhuggi, Sundar Nagri, Delhi, Ex.PW16/G. The call CDR of above said number of 05.02.2020 is Ex.PW16/H. He had also brought certified copy of above said mobile numbers for the above said period, Ex.PW16/I. He had issued the certificate u/s 65B Indian Evidence Act, Ex.PW16/J regarding the above said CDR, CAF and Location Chart of above said mobile numbers with the seal of company.

39. PW17 Shashank Tyagi deposed that he was working as Nodal Officer at Vodafone Idea Ltd., since 2016. He was acquainted with the handwriting and signature of Sh. Ajeet Singh, Nodal Officer as he had worked with him and seen him writing and signing in discharge of official duties and his whereabouts were not available as per record and his knowledge.

CAF of mobile no. 9582318290, which was issued in the name of Manju W/o Amit Kumar r/o G-4/661, Jhuggi Sundar Nagri, Delhi, Ex.PW17/A, was issued by Ajeet Singh and it bears his signature at point A and seal of the company on both pages. The CDR of above said number from period 01.02.2019 to 06.02.2019, Ex.PW17/B was also issued by Ajeet Singh and bears his signature at point A and seal of the company.

40. PW17 further deposed that the location chart pertaining to the above said number and period, was also issued by Ajeet Singh, Ex.PW17/C and it also bears his signature at point A. Ajeet Singh had also issued the certificate u/s 65B Indian Evidence Act regarding the CAF and CDR of above said KUMAR by KUMAR RAJAT RAJAT 16:59:41 Date: 2025.05.28 +0530 mobile number, Ex.PW17/D and Ex.PW17/E bearing his signature at point A respectively with the seal of company.

41. PW18 Rtd. ACP Mahesh Kumar deposed that on 15.05.2019, he was working as Inspector Draftsman at Crime Branch Police Head Quarter, New Delhi. On that day, at the request of Inspector Avtar Singh, he reached at PS Nand Nagri, Delhi. From there, he along with Inspector

Avtar Singh and other police staff visited the spot i.e. 1 st Floor, E-57/661/64, Jhuggi Nand Nagri, Delhi where at the instance of Inspector Avtar Singh, he took measurements and prepared rough notes of the spot. On 30.05.2019, on the basis of rough notes and measurements, he prepared scaled site plan, Ex.PW18/A. PW18 destroyed the rough notes after preparation of aforesaid site plan.

42. PW19 HC Shrikant deposed that on 27.02.2019, he was posted as Constable at PS Nand Nagri. On that day, he joined the investigation of the present case with Insp. Avtar Singh. On that day, at about 08:30 pm, he along with IO went to jhuggi of accused Amit at E-57/661/64, Jhuggi, Sundar Nagri, Delhi where they met father of deceased namely Prem Pal. IO prepared the site plan at the instance of Prem Pal. They also met accused Amit at the above said jhuggi and IO interrogated him and after interrogation, he was arrested vide arrest memo, Ex.PW19/A, his personal search, Ex.PW19/B was also conducted and his disclosure statement, Ex.PW19/C was also recorded by the IO.

43. PW19 further deposed that thereafter, he along with ASI Upender took accused Amit to hospital for his medical examination. After medical examination, they returned to PS and KUMAR by KUMAR RAJAT RAJAT Date: 2025.05.28 16:59:46 +0530 he was lodged in police Lock-up. PW19 correctly identified accused Amit in the Court.

44. PW20 Rtd. ACP Awtar Singh deposed that in the year 2019, he was posted as SHO, PS Nand Nagri. On 05.02.2019, a call regarding suicide was received in PS that one lady namely Manju, aged about 21 years, committed suicide at her residence i.e. E-57/661/64, Jhuggi Sundar Nagri, Delhi. The same was entrusted to ASI Upender for attending and taking necessary action. On information, he had visited GTB Hospital where deceased was admitted and under treatment. The doctor had declared her unfit for statement. Thereafter, he had visited the scene of crime/incident at above said jhuggi where the crime team and ASI Upender were already present.

45. PW20 further deposed that the scene of crime was at 1 st floor of the above said jhuggi. Crime team inspected the spot and took photographs of the same. Necessary instruction was given to ASI Upender for examination of neighbours, who were present during evacuation of dead body of deceased from her house as the door of the room was locked from inside and door was broken to take body outside the room. Meanwhile, SDM Seemapuri was called by ASI Upender, who deputed Executive Magistrate Atul Ramchiari, to record the statements of family of deceased.

46. PW20 further deposed that on 07.02.2019, postmortem of deceased was got conducted by ASI Upender at GTB Hospital, who got registered the FIR on the statement of father of deceased namely Prempal. The said statement was recorded by Executive Magistrate. After registration of the FIR, on 26.02.2019, further investigation of the present case was marked to him and he along KUMAR by KUMAR RAJAT RAJAT Date: 2025.05.28 16:59:51 +0530 with other police official went to the spot and prepared the site plan, dt. 26-27.02.2019, Ex.PW20/A at the instance of Prempal.

47. PW20 further deposed that on 27.02.2019, he along with police staff was present in the area of Sundar Nagri where accused Amit was apprehended, interrogated and arrested vide arrest memo, Ex.PW19/A, his personal search, Ex.PW19/B was also conducted and his disclosure statement was

recorded vide statement, Ex.PW19/C. On 15.05.2019, the draftsman Insp. Mahesh from Crime Branch was called for preparing scaled site plan of scene of crime and he prepared the same vide Ex.PW18/A.

48. PW20 further deposed that during investigation, it came to his knowledge that there were 4 DD entries i.e. 114B dt. 01.11.2018, Ex.PA3, 15B, Ex.PW20/B, 115B dt. 01.11.2018, Ex.PW20/C and 12B dt. 02.11.2018, Ex.PW20/D made in PS Nand Nagri regarding quarrel between accused Amit and deceased.

49. PW20 further deposed that on 27.02.2019, he recorded the supplementary statement of Prempal, father of deceased and statements of public witnesses namely Rohit, Ct. Shrikant, Ct. Sonu Bhati, SI Rajender (I/C Crime Team), HC Shri Bhagwan (photographer) and 1st IO/ASI Upender Singh u/s 161 Cr.PC. On 17.03.2019, he recorded the statement of mother of deceased Mamta u/s 161 Cr.PC, who handed over the list of dowry/stridhan articles, Ex.PW20/E bearing her signature, which were given to accused Amit in the marriage of her daughter. He recorded the statement of public witnesses namely Rihana and Reena (friends of deceased Manju) u/s 161 Cr.PC.

50. PW20 further deposed that CDR, CAF details regarding the mobile phone of deceased and her family members KUMAR by KUMAR RAJAT RAJAT Date: 2025.05.28 16:59:56 +0530 i.e. mother and subsequent opinion regarding the death of deceased Manju were kept pending. He filed charge-sheet against accused Amit. PW20 correctly identified accused Amit in the Court.

51. PW21 HC Sonu Bhati deposed that on 05.02.2019, he was working as Constable at PS Nand Nagri. On that day, on receiving DD No. 16A, Ex.PW5/A, he along with ASI Upender reached the spot i.e. Jhuggi, E-57/661/64, Sundar Nagri, Delhi where the main gate of the above said jhuggi/house was found to be locked from outside. On interrogation, it was found that one lady had committed suicide by hanging and she had been taken to GTB Hospital, Delhi. ASI Upender went to the GTB Hospital leaving him at above said house.

52. PW21 further deposed that thereafter, at about 12:30 PM, ASI Upender returned to the aforesaid spot along with accused Amit and his father Vishnu. He gave information to the SDM Seemapuri through mobile phone and also called the crime team at the spot. In the meantime, SHO, PS Nand Nagri reached at the spot. Public persons namely Rohit and Ashok were present at the spot, who disclosed that accused Amit had opened the main gate of aforesaid jhuggi/house and the other gate was opened by accused Amit and public person Murari. Thereafter, they i.e. PW21, ASI Upender, Crime Team Staff, accused Amit and his father, public person Ashok, Rohit and others went upstairs. They saw that one piece of dupatta/chunni (colour narangi) was hanging with ceiling fan and other piece of dupatta/chunni was lying on the floor.

53. PW21 further deposed that one knife/scissors was also lying in the room (with yellow colour handle). ASI Upender seized KUMAR by KUMAR RAJAT RAJAT Date: 2025.05.28 17:00:01 +0530 the same vide seizure memo, dt. 05.02.2019, Ex.PW14/A. Executive Magistrate Atul Ramchiary, Seemapuri also came at the spot and inspected the spot and also inquired from the public persons and parents of deceased. On 27.02.2019, his statement was recorded by Insp. Awatar Singh. PW21

correctly identified two pieces of dupatta/ chunni (colour narangi), Ex.P1 as being the same pieces of dupatta/chunni, which was seized by IO vide seizure memo, Ex.PW14/A and found at the spot. PW21 also correctly identified one scissors with yellow grip, Ex.P2 as being the same scissor, which was seized by him vide seizure memo, Ex.PW14/A and found at the spot. PW21 correctly identified accused Amit in the Court.

54. PW22 Dr. Shilpa Singh, Associate Professor, Department of Forensic Medicine, Santosh Medical College, Ghaziabad, UP deposed that on 07.02.2019, she was posted as SR in Department of Forensic Medicine, UCMS & GTB Hospital, Delhi. On that day, ASI Upender Singh of PS Nand Nagri has submitted the request for postmortem form along with 18 inquest papers for the postmortem of Manju W/o Amit, female, aged about 21 years. The request form of postmortem is Ex.PW9/D and Form No.25.35(1)(B) is Ex.PW22/A. The inquest papers attached with the request of postmortem bears her initial at point C on respective pages.

55. PW22 further deposed that she had conducted the postmortem of Manju W/o Amit, Female, 21 years, which started at 11:15 AM and completed at 12:15 PM. She mentioned the details of injuries upon the body of deceased in the column no. B (details of external injuries). After conducting postmortem, the KUMAR RAJAT RAJAT Date:

2025.05.28 17:00:05 +0530 cause of death was opined by her was "shock as a result of pulmonary edema subsequent to antemortem hanging". Time since death was about 02 days. She handed over postmortem report along with inquest papers to ASI Upender Singh. Postmortem report no. 218/19 is Ex.PW22/B.

56. PW22 further deposed that an application along with the sealed parcels containing dupatta was submitted in the Department of Forensic Medicine for subsequent opinion and the same was marked to her. She had opened the white sealed cloths parcel with the seals of US. After breaking the seal, parcel was found containing two pieces of dupatta, orange colour georgette. She had given subsequent opinion in reference of queries mentioned by police official.

57. PW22 further deposed that on 08.08.2019, she had given subsequent opinion, Ex.PW22/C. She handed over the sealed pulanda containing the two pieces of chunni to the concerned police official. PW22 correctly identified, two pieces of chunni/dupatta (orange colour), Ex.P1 from the photographs on record. PW22 deposed that there are the same chunni/dupatta, which were examined by her prior to giving her subsequent opinion.

#### STATEMENT OF ACCUSED u/s 351 BNSS.

58. Statement of accused Amit was recorded u/s 313 Cr.P.C. (351 BNSS) on 22.05.2025 and he denied the incriminating evidence put to him. He stated that all the public witnesses are interested witnesses and he was falsely implicated by the police officials in the present case without any fault on his KUMAR Digitally signed by KUMAR RAJAT RAJAT 17:00:10 +0530 Date: 2025.05.28 part and he had nothing to do as alleged by the Investigating Officer and praying for acquittal. In June, 2017, he had married deceased Manju in Karkardooma Court without intimating their parents as it

was a love marriage and then, he and deceased started residing at their respective homes. Then, when the people from the locality stated that since both were in love and used to roam with each other, it would be better to get them married and then, they got married with the consent of parents without any dowry and marriage was solemnized in a Dharamshala in the presence of only 20-25 persons. The deceased and her Mausis used to tell accused to reside separately from his parents and he did not want to reside separately as his parents were poor and for that deceased used to tell him that she would implicate him in a false case and most of the time, she remained in the house of her Mausis at Agra and Mathura.

59. In January, 2019, deceased, her mother and mausi had talked on conference call and deceased was told to reside separately. The deceased had come to her parental house on 02.02.2019 from the house of her Mausis at Agra and then, accused Amit took her to his house on 03.02.2019 and then, again she raised the same thing that she wanted to reside separately and on refusal of accused, she committed suicide on 05.02.2019 and prior to that he had called telephonically to her parents to pacify her to reside at her matrimonial home and not separately, then she locked herself and committed suicide. The parents of deceased were actually not happy with the love marriage and they had married her to him only for show off in KUMAR RAJAT RAJAT Date:

2025.05.28 17:00:14 +0530 the society.

#### APPRECIATION OF EVIDENCE, ANALYSIS OF WITNESSES AND FINDING ARGUMENTS OF LD. COUNSEL FOR ACCUSED

60. It is argued by Ld. counsel for accused that he has been falsely implicated by the police at the instance of complainant and he had never caused any injury to the victim/deceased nor he ever harassed her in any manner nor he committed any cruelty with her and even did not demand any dowry at any point of time. There is no specific date of demand of alleged dowry stated by the witnesses and the victim had committed suicide as she wanted to reside separately from accused and his family members and her mausi, mother and other family members used to instigate her to reside separately and she used to remain at her parental home or at the house of her Mausis away from the accused. There was no injury found on the body of deceased and it was the accused, who had taken her to the hospital. It was the love marriage between the accused and deceased and thus, there was no question of any demand of dowry and the parents of the deceased have deposed against the accused falsely as they were against the said marriage and under compulsion of victim, they had married both victim and accused though they had already married at Karkardooma Court. There was no complaint prior to the registration of the case against the accused for demand of dowry and false allegations have been leveled just to have pecuniary gain from accused. It is not proved that soon before death, she was subjected cruelty in connection KUMAR RAJAT RAJAT Date:

2025.05.28 17:00:18 +0530 with demand of dowry and presumption u/s 113B Indian Evidence Act will not apply. All the allegations of demand of dowry or causing cruelty

could not be proved by the prosecution beyond reasonable doubt. Ld. Counsel for accused relied upon the following judgments:

1. State Vs. Sudesh Gulati & Ors., 2015 [2] JCC 785.
2. T Aruntperunjothi Vs. State, AIR 2006 SC 2475.
3. Sunil Bajaj Vs. State of MP AIR, 2001 SC 3020.
4. Charan Singh @ Charanjit Singh Vs. The State of Uttarakhand, [2023] 3 SCR 511.

#### ARGUMENTS OF LD. ADDL. PP FOR THE STATE

61. Ld. Addl. PP for the State has argued that prosecution has proved its case against the accused beyond reasonable doubt as the deceased committed the suicide within 7 years of marriage and PW9, Executive Magistrate had recorded the statement of the father of deceased and he proved the same as PW1/A in which he had levelled allegations of cruelty and harassment and demand of dowry against the accused. PW2 Mamta, who is mother of accused has also corroborated the version of PW1 regarding demand of dowry i.e. bullet motorcycle and Rs. 2 lakhs by accused from deceased. PMR has proved that death was caused due to hanging and the deceased took the extreme step due to the cruelty and harassment by the accused within a year of marriage and presumption u/s 113(B) of the Indian Evidence Act has to be raised against the accused, which he failed to rebut. All the police witnesses have supported the case of prosecution and the marriage between the deceased and the accused is not disputed KUMAR by KUMAR RAJAT RAJAT 17:00:22 Date: 2025.05.28 +0530 and the statements of witnesses and the PMR shows that she died because of hanging and it was not a natural death and accused admitted his guilt in his disclosure statement and there is nothing in the cross-examination of these witnesses to doubt their veracity. There are allegations of beating the deceased by accused by PW1 and PW2.

62. I have heard the rival contentions and perused the records.

63. The prosecution has examined 22 witnesses to prove its case against the accused.

64. The charges against accused are u/s 498A/304B IPC.

498A IPC: Husband or relative of husband of a woman subjecting her to cruelty. Whoever, being the husband or the relative of the husband of a woman, subjects such woman to cruelty shall be punished with imprisonment for a term which may extend to three years, and shall also be liable to fine.

304B IPC. Dowry Death:

(1) Where the death of a woman is caused by any burns or bodily injury or occurs otherwise than under normal circumstances within seven years of her marriage and it is shown that soon before her death she was subjected to cruelty or harassment by her husband or any relative of her husband for, or in connection with, any demand for dowry, such death shall be called "dowry death", and such husband or relative shall be deemed to have caused her death.

(2) Whoever commits dowry death shall be punished with imprisonment for a term which shall not be less than seven years, but which may extend to imprisonment for life.

65. PW1 Prem Pal and PW2 Mamta, who were parents of the deceased, deposed that their daughter Manju got married KUMAR by KUMAR RAJAT RAJAT Date: 2025.05.28 17:00:27 +0530 to accused Amit on 18.04.2018 as per Hindu customs and rites and they had given dowry articles as per their financial status.

PW1 deposed that he had given household articles and gold jewellery in the marriage and then, she started residing at her matrimonial home and whenever she used to visit her parental home, she used to tell her mother about the torture and beatings given by accused to her as he was not satisfied with the articles given in the marriage. PW1 and PW2 deposed that accused Amit used to demand bullet motorcycle or Rs. 2 Lakh and threatened their daughter that he would kidnap or kill her brother and she was afraid of accused.

66. The marriage between the accused and daughter of PW1 and PW2 i.e. deceased Manju on 18.04.2018 is not disputed. PW1 and PW2 have not stated any specific date, time or place as to when and where the accused had demanded bullet motorcycle or Rs. 2 Lakhs from deceased and they have also not deposed if the accused demanded the same from either PW1 or PW2. There is no MLC on record about the beatings caused to deceased and PW1 and PW2 admitted in their cross-examination that deceased and accused were in love/relationship prior to their marriage and at the time of marriage, there was no demand of any dowry or any other article by the accused Amit or his family members and PW1 and PW2 had given household articles and gold jewellery as per their will/capacity.

67. In the marriage, the parents give articles to the bride and bridegroom as part of the marriage rituals and that KUMAR Digitally signed by KUMAR RAJAT RAJAT 17:00:32 +0530 Date: 2025.05.28 these articles facilitate the life of their daughter at their matrimonial home and unless and until, there is any specific demand of any article or money is made at the time of marriage or prior to it, it cannot be said that all such articles are demanded as dowry articles as these are given by the parents out of their own desire, happiness and will. In this case, as per PW1 and PW2, there was no demand of dowry or specific articles on part of accused or his family members and that it was a love marriage, which shows that accused and his family members were not greedy at the time of marriage or prior to it.

68. Further, PW1 and PW2 in their cross-examination admitted that they had never made any complaint to the police or any authority against the accused about his torture and beating to their daughter, which also cast a doubt on the said allegations and it is not explained as to when accused had threatened the deceased that he would kidnap and kill her brother and when it was intimated by her to PW1 or PW2 and when intimated, why PW1 and PW2 did not lodge any complaint against accused Amit considering the seriousness of allegations pertaining to his son as well as daughter.

69. PW1 deposed that on 05.02.2019, he was at his work place and his daughter made phone call to her mother at 9.30 AM and told that her daughter was being beaten by her husband Amit and he was informed by his wife PW2 about the incident and on his way to home, he came to know that his daughter was taken to hospital, then he along with his wife KUMAR Digitally signed by KUMAR RAJAT RAJAT 17:00:37 +0530 Date: 2025.05.28 reached GTB Hospital.

On the contrary, PW2 in her cross-examination stated that after hearing the incident she went to the hospital and later on, her husband also came there and she did not telephonically inform her husband about the incident.

PW1 had identified the dead body of deceased vide memo, Ex.PW1/B and the same is not disputed by accused Amit.

70. PW2 has deposed that accused Amit was in her distant relation and he used to visit her house prior to marriage with deceased. PW1 and PW2 have deposed that on 05.02.2019 at 9.30 AM, when deceased called PW2, she informed that she was beaten by accused, but in the PMR, Ex.PW22/B, there is no injury mark except the ligature mark and even in the MLC, Ex.PW4/A only ligature mark around neck is shown and there is no other antemortem injury mentioned and their version is not corroborated by medical opinion qua any injury to deceased by accused on her last day of life.

71. The deceased was unfit for statement as recorded in MLC, so her statement could not be recorded. It is difficult to believe that when PW2 came to know that her daughter was being beaten by accused why she did not go to her house to check as in her cross, she stated that distance between her house and that of accused was 10 minutes walking. PW2 also stated that the family of accused and her family were on visiting terms, which shows that they knew each other and also Digitally signed by KUMAR KUMAR RAJAT RAJAT Date:

2025.05.28 17:00:41 +0530 the financial capacity of each other at that time. PW2 also stated that at the time of proposal of marriage, between deceased and accused no demand of dowry was raised by the nani and mausi of accused and no engagement ceremony was solemnized prior to marriage at rented Dharamshala in Harsh Vihar.

72. PW2 in her cross-examination stated that she had given list of dowry articles to the police official, but PW1 in his cross-examination stated that they had not prepared any list of household articles and jewellery, which were given to accused at the time of marriage, which are contrary versions and no such list was put either to PW1 or PW2, but it was put to only PW20 IO, who exhibited the same as PW20/E and even otherwise such articles might have been given by the



parents of deceased to her daughter and they have categorically deposed that neither accused nor his family members demanded any dowry at the time of marriage nor it is the case of prosecution that accused refused to give these articles as per any demand of PW1 and PW2.

73. PW2 in her cross-examination also stated that upto 3 months everything was proper between the deceased and accused and that the said demand of dowry was informed by deceased to her telephonically and not in the presence of any neighbour. Again, she has not stated any specific date and time about the demand of dowry nor PW1 and PW2 have stated that if they had visited the house of accused or talked to him, his parents or relatives to pacify the matter nor any such meeting  
KUMAR RAJAT RAJAT Date:

2025.05.28 17:00:48 +0530 took place and it is difficult to believe as to why despite the demand of dowry by the accused, PW1 and PW2, who are also residents of same locality, did not bother to visit the matrimonial house of deceased after those demands or on 05.02.2019, when she received the call from the deceased at 9.30 AM that she was being beaten by accused.

74. PW2 in her cross-examination also stated that on the festival of Dhanteras/Deepawali in the year 2019, the accused Amit had once beaten her daughter and police complaint was also lodged and accused was lodged in lock up for one night, which is contrary to the testimony of PW1, who admitted in his cross-examination that they never made any complaint to the police or any other authority against the accused about his torture and beatings to his daughter. Further, it was mentioned that accused had beaten deceased in 2019, but that may be typographical error as the incident happened in February, 2019 and Deepawali comes in October-November, but there is no such complaint proved or brought on record by the prosecution or witnesses.

75. PW1 in his cross-examination volunteered that accused Amit had made call to him on 05.02.2019, to call him at his house without apprising him anything and he refused to visit his house and accused had given suggestion that he called him at 10 AM to inform that his daughter was quarreling with him and adamant to leave her matrimonial home and threatened to implicate him in false case.

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76. Another public witness PW12 Reena was examined, but she turned hostile and only proved the marriage between accused and deceased and that they had love affair.

During cross-examination by Ld. APP, she denied that one week prior to her death, deceased had telephonically disclosed to her that 'Main bahut pareshan hu, mujhe koi job dila de aur vo ro rahi

thi', even after she was confronted with her statement u/s 161 Cr.P.C., Ex.PW12/A. Even if she would have deposed as per her statement, Ex.PW12/A, then also deceased had not leveled any allegations against accused, be it of cruelty or of demand of dowry.

77. Other public witnesses PW3 Ashok and PW8 Rohit proved that on the date of incident, they had reached the house of accused and saw that his wife was hanging on a ceiling fan with the help of chunni and that accused requested them to open the door and with their help and of others, they had broken open the door and got released the deceased and put down from ceiling fan. She was breathing at that time and was taken to GTB Hospital by accused. PW3 admitted in cross-examination that the wooden door was forcibly broken open by accused in his presence and similarly PW8 identified the said broken gate/door and chunni/dupatta with which deceased was hanging from 19 photographs, Ex.PW7/1 (colly) and photographs, Ex.PW8/A (colly), but the said photographs could not be proved by prosecution as per law as PW7 deposed that he took the 27 photographs i.e. Ex.PW7/1 to Ex.PW7/19 and Ex.PW8/A were clicked by him from the digital camera, KUMAR RAJAT RAJAT Date:

2025.05.28 17:00:58 +0530 but no certificate u/s 65B of the Indian Evidence Act was annexed or proved on record and identification of photographs by PW14 is also inconsequential.

78. Further, PW8 in his cross-examination admitted that mother of deceased Manju i.e. PW2 also entered the aforesaid room along with them on 05.02.2019, but PW2 has not stated so, which are contrary version. The deceased had not died when she was brought down and accused immediately took her to the hospital to save her, which shows that accused did not want her to die.

#### TECHNICAL EVIDENCE

79. PW13 Inspector Ravi Prakash deposed that he collected CDR, CAF with requisite certificates u/s 65B Indian Evidence Act regarding mobile phones of Manju (deceased), 9582318290, Prem Pal (PW1), 9971274962 and Mamta (PW2), 9958439385 and on analysis, he found that on 05.02.2019, deceased Manju called her father Prem Pal on his number at 8.55 AM and 9.25 AM and she also called her mother at 7.52 AM and 10.12 AM.

80. PW16, proved the CAF of mobile numbers 9971274962 and 9958439385 in the name of PW1 Prem Pal, Ex.PW16/A and Ex.PW16/C and their CDR of 05.02.2020, Ex.PW16/B and Ex.PW16/D, but the prosecution failed to explain as to why IO took and it proved the CDR of 05.02.2020 though the incident was of 05.02.2019, which shows the serious lapse in investigation by the IO. Also, PW13 deposed that the number 9958439385 was of Mamta, but KUMAR RAJAT Date:

RAJAT 2025.05.28 17:01:02 +0530 actually it was of Prem Pal as per the CAF, Ex.PW16/C.

81. As per Ex.PW16/E i.e. CAF of mobile number 9990902841, the said number was issued in the name of Mamta, which was not analyzed by PW13 and the CDR of said

number was also taken of 05.02.2020, Ex.PW16/F, which is inconsequential. Mobile number 8800257969 was of Amit as per CAF, Ex.PW16/G and its CDR, Ex.PW16/H is also of 05.02.2020, which is of no use. PW1 had volunteered in his cross that accused had made call to him on 05.02.2019 and accused had taken the defence that he had called him at around 10 AM on said day to inform that deceased was quarreling with him, adamant to leave her at her matrimonial home and if she was not allowed, she was threatened that she would implicate him in a false case. Had the prosecution bring the correct CDR on record, this fact would have been verified.

82. PW17 proved the CAF of mobile number 9582318290 in the name of Manju, Ex.PW17/A and its CDR, Ex.PW17/B from 01.02.2019 to 06.02.2019, which is of relevant period and location chart, Ex.PW17/C and the relevant certificates u/s 65B Indian Evidence Act, Ex.PW17/D and Ex.PW17/E and as per those, the call was made from the said mobile of Manju to the said numbers of Prem Pal i.e. 9971274962 and 9958439385 at 7.52 AM, 8.55 AM, 9.28 AM and 10.13 AM on 05.02.2019 i.e. the date of incident, but PW1 has not deposed at all that he received any call from deceased Manju on his said numbers on that day. Even PW1 and PW2 have not stated that said numbers were with PW2, who KUMAR RAJAT RAJAT Date:

2025.05.28 17:01:06 +0530 received call of Manju on that number as PW2 had separate phone, but no call was made on her number at about 9.30 AM that day as deposed by PW1 and PW2 and thus, there are technical infirmities also in the case of prosecution.

#### MEDICAL/FORENSIC EVIDENCE

83. PW4 Dr. Madhusudan Verma deposed that he examined deceased Manju at GTB Hospital and she was brought by accused Amit and on examination, a ligature mark around her neck was present and she was drowsy and unfit for statement and MLC was prepared by Dr. Rahmat Ulla, JR under his supervision, Ex.PW4/A and said doctor had left the hospital, whose whereabouts are not known and he was acquainted with his handwriting and signature. In the aforesaid MLC, there was no injury mentioned and only ligature mark is mentioned.

84. PW22 Dr. Shilpa Singh deposed that on 07.02.2019, ASI Upender Singh submitted request for postmortem vide request form, Ex.PW9/D along with inquest papers for PM of Manju and she conducted the postmortem and gave the report, Ex.PW22/B and cause of death was "shock" as a result of pulmonary edema subsequent to antemortem hanging and she had given her subsequent opinion on 08.08.2019, Ex.PW22/C as per the query of IO and she examined the chunni/dupatta in two pieces, Ex.P1, which were examined by her prior to giving her subsequent opinion. As per Ex.PW22/C, PW22 opined that the chunni/dupatta may lead to death of deceased on hanging or that it may cause ligature KUMAR by KUMAR RAJAT RAJAT Date: 2025.05.28 17:01:11 +0530 marks on the neck of deceased cannot be

ruled out.

85. As per the inquest report, Ex.PW22/A and Ex.PW9/E, there are no injuries mentioned therein and it was signed by PW1 Prem Pal, which shows that no injury was caused to the deceased by the accused as claimed by PW1 and PW2. PW22 in her cross-examination stated that apart from the ligature marks on the body of deceased, there were two surgical bandages present on the right wrist showed infection marks, there was also one tracheostomy wound present in the midline of the neck, covered with two surgical sutures. It was possible that the said infection marks and wound in the midline of the neck were possible due to treatment at the hospital.

86. Thus, from the said medical/forensic evidence, it is proved that there was no injury on the body of deceased except ligature marks and thus, the version of PW1 and PW2 that accused used to beat her or that he was beating deceased on 05.02.2019 at 9.30 AM is not corroborated at all.

POLICE WITNESSES 87 PW5 W/ASI Prakash proved the GD No. 16A, Ex.PW5/A and GD No. 17A, Ex.PW5/B and as per former, it was made by the accused at 10.57 AM on 05.02.2019 that his wife had hanged herself and the latter one was made by his father regarding the said incident.

88. PW6 SI Rajender Singh proved the SOC Report, Ex.PW6/A, as per which, it was a suicide by hanging with orange chunni from ceiling fan by deceased Manju at 10.50 KUMAR by KUMAR RAJAT RAJAT Date: 2025.05.28 17:01:15 +0530 AM on 05.02.2019 and IO was advised to seize two pieces of chunni and one scissors, which shows that deceased had committed suicide and not the murder as claimed by PW2 in her examination. Even PW20 deposed that it was suicide, which is not disputed.

89. PW9 Atul Ramchiary proved the recording of statement of PW1 Prem Pal, Ex.PW1/A, which was endorsed by him vide Ex.PW9/A, which was also corroborated by PW14. PW9 proved that body of deceased was identified by PW1 Prem Pal and accused Amit Kumar vide their identification statement, Ex. PW9/B and Ex.PW9/C, but the identity of deceased was not disputed and it was also corroborated by PW14. After postmortem, on 07.02.2019, the dead body of deceased was handed over to ASI Upender Singh vide endorsement, Ex.PW9/D, which is further corroborated by PW14.

90. PW10 ASI Suraj Prakash proved the PCR Form, Ex.PW10/A vide which accused Amit informed from his mobile no. 8800257969 on PCR call on 05.02.2019 at 10.57 AM that his wife had hanged herself with chunni from the ceiling fan and after opening the gate, she was brought down.

PW11 proved the PCR Form, Ex.PW11/A made by Savitri on same day at 11.03 AM regarding the same fact and these informations further strengthens the fact that the deceased committed suicide

at her matrimonial home on 05.02.2019.

91. PW14 ASI Upender deposed that he reached the spot at Jhuggi E-57/661/64, Sunder Nagri, Delhi where its KUMAR Digitally signed by KUMAR RAJAT RAJAT Date: 2025.05.28 17:01:20 +0530 main gate was found locked from outside and one lady had committed suicide by hanging and already taken to GTB Hospital and he met the parents of deceased and accused at the hospital and her father Prem Pal disclosed that Amit used to torture his daughter Manju. PW14 proved the seizure of dupatta/chunni of orange colour and scissors vide seizure memo, Ex.PW14/A and he also identified said chunni and scissors, Ex.P1 and Ex.P2. PW14 proved handing over of dead body to PW1 and accused vide handing over memo, Ex.PW1/B and Ex.PW14/B and also the rukka, Ex.PW14/C on the basis of which FIR was registered on 26.02.2019.

#### DELAY IN FIR

92. It is contended by Ld. Counsel for accused that there was delay in lodging of FIR, which was not explained by the prosecution.

93. PW9 deposed that he recorded the statement of PW1 Prem Pal on 06.02.2019 and postmortem was conducted on 07.02.2019. PW14 admitted that the FIR was lodged on 26.02.2019 and in his cross-examination, he admitted that statements of parents of deceased i.e. PW1 and PW2 were handed over to him by the Executive Magistrate (PW9) on 07.02.2019 at 4.30 PM and on Court question that why he did not register FIR on 07.02.2019, he replied that he discussed the matter with SHO, Nand Nagri and on his directions, he registered the FIR after postmortem, which is a vague reply as postmortem was concluded on 07.02.2019 and there was no justification to register FIR after 21 days from the date of KUMAR RAJAT RAJAT Date:

2025.05.28 17:01:26 +0530 offence. Accused had taken the plea that FIR was not lodged promptly as parents of the deceased were demanding Rs. 10 Lakh from the accused. PW22 in her cross-examination stated that she had handed over PMR to PW14 ASI Upender on 07.02.2019 itself when postmortem of the deceased was conducted.

94. In Sudesh Gulati (Supra), DB of Hon'ble Delhi High Court considered the unexplained delay in recording of FIR as one of the factors while acquitting the accused u/s 304(B)/498A IPC.

95. The Hon'ble Apex Court in Dilawar Singh Vs. State of Delhi reported in 2007 (12) SCC 641 has held as follows:

9. In criminal trial one of the cardinal principles for the delay in lodging the report. Delay sometimes affords opportunity to the complainant to make deliberation upon the complaint and to make embellishment or even make fabrications. Delay defeats the chance of the unsoiled and untarnished version of the case to be presented before the court at the earliest instance. That is why if there is delay in either coming before

the police or before the court, the courts always view the allegations with suspicion and look for satisfactory explanation. If no such satisfaction is formed, the delay is treated as fatal to the prosecution case".

96. The Hon'ble Apex Court in State of Karnataka Vs. Mapilla P.P. Soopi, decided on 23.09.2023, reported in AIR 2004 SC 83 while giving the benefit to the accused for delay in lodging the FIR has held as follows:

"Undue delay in lodging the complaint without acceptable evidence has also contributed to the doubt in prosecution case. Hence, KUMAR by KUMAR RAJAT RAJAT Date: 2025.05.28 17:01:30 +0530 the High Court was justified in allowing the appeal."

Presumption u/s 113 B of Indian Evidence Act.

97. Section 113B Indian Evidence Act: Presumption as to dowry death- When the question is whether a person has committed the dowry death of a woman and it is shown that soon before her death such woman had been subjected by such person to cruelty or harassment for, or in connection with, any demand for dowry, the court shall presume that such person had caused the dowry death.

Presumption u/s 113-B, when to be drawn.- Section 113B of the Evidence Act lays down that if soon before her death a woman is subjected to cruelty or harassment for, or in connection with any demand for dowry by the person who is accused of causing her death then the Court shall presume that such person has caused the dowry death. The presumption u/s 113B is a presumption of law and once the prosecution establishes the essential ingredients mentioned therein it becomes the duty of the court to raise a presumption that the accused caused the dowry death

- State V. Jaggu Ram (2008) 12 SCC 51.

Supreme Court while often dwelling on the scope and purport of Section 304B of the Code and Section 113B of the Evidence Act have pronounced that the presumption is contingent on the fact that the prosecution first spell out the ingredients of the offence of Section 304B. Reference may be made to Shindo v. State of Punjab (2011) 11 SCC 517 Presumption and its rebuttal.- Initial burden of proof lies on the prosecution. Burden would not shift on the accused merely on the fact that unnatural death had occurred within seven years of marriage without even proving the demand of dowry prior to the incident . Reference may be made to State v. Teg Bahadur (2004) 13 SCC 300.

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98. Soon before her death.- What would satisfy the requirements of "soon before her death" within the meaning of Sec. 304B depends upon facts and circumstances of each case

- T Aruntperunjothi v State (2006) 9 SCC 467.

"Soon before" is a relative term which is required to be considered under specific circumstances of each case and no straitjacket formula can be laid down by fixing any time limit. The term is not synonymous with the term "immediately before" and is opposite of the expression "soon after". These words would imply that the interval should not be too long between the time of making the statement and the death. Proximate and live link between the effect of cruelty based on dowry demand and the consequential death is required to be proved by the prosecution - *Kans Raj v State* (2000) 5 SCC 207 (para 15). Mere lapse of some time by itself would not provide to an accused a defence, if the course of conduct relating to cruelty or harassment in connection with the dowry demand is shown to have existed earlier in time not too late and not too stale before the date of death of the woman. The phrase "soon before her death" is an elastic expression and can refer to a period immediately before her death or within a few days or even a few weeks before it. But the legislative object in providing such a radius of time is to emphasize the idea that her death should, in all probabilities, have been the aftermath of such cruelty or harassment. In other words, there should be a perceptible nexus between her death and the dowry related harassment or cruelty inflicted on her. It is for the Court to KUMAR Digitally signed by KUMAR RAJAT RAJAT 17:01:39 +0530 Date: 2025.05.28 decide on the facts and circumstances of each case whether the interval could be called "soon before her death" - *Satvir v State* (2001) 8 SCC 633.

99. In cases of dowry death u/s 304B IPC, the presumption u/s 113B of Indian Evidence Act shall be raised only on the proof of following essentials.

In *Mustafa Shahadal Shaikh vs. State of Maharashtra* (2012) 11 SCC 397 AIR 2023 SC 851, Hon'ble Supreme Court held that in order to convict an accused for the offence punishable u/s 304B IPC, the following essentials must be satisfied:

- (i) the death of a woman must have been caused by burns or bodily injury or otherwise than under normal circumstances;
- (ii) such death must have occurred within seven years of her marriage;
- (iii) soon before her death, the woman must have been subjected to cruelty or harassment by her husband or any relatives of her husband;
- (iv) such cruelty or harassment must be for, or in connection with, demand for dowry.

When the above ingredients are established by reliable and acceptable evidence, such death shall be called dowry death and such husband or his relatives shall be deemed to have caused her death. If the abovementioned ingredients are attracted in view of the special provision, the court shall presume and it shall record such fact as proved unless and until it is disproved by the accused. However, it is open to the accused to adduce such evidence for disproving such compulsory

presumption as the burden is unmistakably on him to do so and he can discharge such burden by getting an answer through cross-examination of the prosecution witnesses or by adducing evidence on the defence side.

KUMAR by KUMAR RAJAT RAJAT Date: 2025.05.28 17:01:43 +0530 Reference may be made to Maya Devi v. State of Haryana 2016 Cr LJ 629: (2018) 1 SCC (Cri) 768: (2015) 17 SCC 405.

100. Hon'ble Supreme Court in Kans Raj (Supra) has observed as under:-

16. No presumption u/s 113B of Indian Evidence would be drawn against the accused if it is shown that after the alleged demand, cruelty or harassment the dispute should resolved and there was no evidence of cruelty or thereafter. Mere lapse of some time by itself would not provide to an accused a defence, if the course of conduct relating to cruelty or harassment in connection with the dowry demand is shown to have existed earlier in time not too late and not too stale before the date of death of the woman.

101. In the present case, neither PW1 nor PW2 could state the date, place and time of demand of dowry by accused and did not depose if the same was demanded by accused from them and admitted that no dowry was demanded by him nor his family members at the time of marriage or prior to it and list of dowry article was got exhibited through PW20 IO, Ex.PW20/E, but it was not put to PW2, who signed and prepared the same or PW1 and thus, it was not proved and PW1 had denied making any such list and it was the love marriage and accused immediately called the police when deceased locked herself and also called her father and then, with the help of neighbours got the gate opened forcibly and took the victim to the hospital, when she was alive. Thus, the prosecution could not prove that soon before the death of deceased, there was any demand of dowry or that any cruelty was done by accused to the victim as there was no injury KUMAR RAJAT RAJAT Date:

2025.05.28 17:01:47 +0530 found on her body nor any dowry was given by deceased or her parents. There are contradictions in the testimony of PW1 and PW2 and their versions could not be corroborated by the independent witnesses.

102. In Sudesh Gulati (Supra), the DB of Hon'ble High Court acquitted the accused persons citing contradiction between the testimonies of prosecution witnesses.

103. In Sunil Bajaj (Supra), Hon'ble Supreme Court held that there was no evidence of demand of dowry or subjecting deceased to cruelty for or in connection with dowry and only vague and inconsistent statement of interested witnesses being parents and brother of deceased and there is no evidence of any relative or neighbour of parties about the cruelty to deceased by the accused in relation to demand of dowry and there was no demand of dowry at the time of marriage.

Similarly in the present case also, there was no demand of dowry at the time of marriage and no relative or neighbour was examined in this respect.



104. In Charan Singh (Supra), it was held by Hon'ble Supreme Court that prosecution has to substantiate the ingredients of section 304B and 498A by direct and convincing evidence so as to avail the presumption u/s 113B of the Indian Evidence Act and proof of cruelty or harassment by the husband or his relative is sine qua non to inspire the statutory presumption. If the prosecution fails to demonstrate by cogent, coherent and persuasive evidence to prove such facts, the KUMAR by KUMAR RAJAT RAJAT Date: 2025.05.28 17:01:51 +0530 person accused of such offences cannot be held guilty by taking refuge only of the presumption to cover up the shortfall in proof.

Mere death of deceased being unnatural in the matrimonial home within 7 years of marriage will not be sufficient to convict the accused u/s 304B and 498A IPC.

105. In State of Uttarakhand Vs. Sanjay Ram Tamta @ Sanju @ Prem Prakash, 2025 INSC 187, Hon'ble Supreme Court relying upon Surender Kumar Singh Vs. State of UP, (2009) 17 SCC 243, held that if any of the ingredients of Section 304B IPC is absent, the presumption u/s 113B Indian Evidence Act would not be available to the prosecution and onus of proof would not shift to the defence.

It was also held in recent judgment of Karan Singh Vs. State of Haryana, 2025 INSC 133.

106. In Rajesh Chaddha Vs. State of Uttar Pradesh 2025 INSC 671, it was held by Hon'ble Supreme Court while acquitting the convict that:

8. At the outset, an act of 'cruelty' for the purpose of Section 498A, corresponds to a willful conduct of such nature, that may cause danger to the life, limb and health of the woman, which is inclusive of the mental and physical health and the harassment caused to her, by coercing her to meet unlawful demands or impossible standards. Further, the demand for dowry in terms of Section 3 and Section 4 of DP Act, 1961 refers to both a direct or indirect manner of demand for dowry made by the husband or his family members. In order to meet the threshold of the offences under Section 498A IPC & Sections 3 and 4 of the DP Act, 1961, the allegations cannot be ambiguous or made in thin air.

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9. In the present case, the allegations made by the complainant are vague, omnibus and bereft of any material particulars to substantiate this threshold. Apart from claiming that appellant husband harassed her for want of dowry, the complainant has not given any specific details or described any particular instance of harassment. The allegations in the FIR, and the depositions of the prosecution witnesses suggest that on multiple occasions, the complainant wife was ousted from the matrimonial house and kicked and punched in the presence of her father, PW2 herein and she was repeatedly tormented with dowry demands, and when she was unable to honour them, the appellant and her family physically beat her up; whereas she has not mentioned the time, date, place or manner in which the alleged harassment occurred. It is alleged that the complainant suffered a miscarriage; as she fell down, when the appellant and her family who pushed her out of the house;

however, no medical document from any medical institution or hospital or nursery was produced to substantiate the allegations.

107. In Shoor Singh & Anr. Vs. State of Uttarakhand 2024 INSC 713, it was held that:

16. No doubt testimonies of PW1 and PW2 would not be hit by the rule against hearsay evidence because it related to one of the circumstances of the transaction resulting in their daughter's unnatural death. However, a distinction must be drawn between admissibility and acceptability/reliability of a piece of evidence. Merely because a piece of evidence is admissible does not mean that it must be accepted. Before accepting the evidence to hold that the fact in issue stands proved beyond reasonable doubt, the Court must evaluate the same against the weight of surrounding circumstances and other facts proven on record.

Thus, in view of the above, the prosecution has not laid the foundational facts to raise presumption u/s 113B Indian Evidence Act or to prove the offence u/s 498-A/34 & 304-B IPC.

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108. PW18 Mahesh Kumar proved the site plan, Ex.PW18/A, which was corroborated by PW20 and PW20 proved the preparation of unscaled site plan, Ex.PW20/A, which is corroborated by PW19, but the place of incident is not disputed. PW19 and PW20 proved the arrest memo of accused, Ex.PW19/A, but that is not disputed and recording of his disclosure statement, Ex.PW19/C, but it is inadmissible in view of the embargo u/s 25 and 26 of Indian Evidence Act.

109. PW20 deposed about the DD No. 114B, Ex.PA3, DD No. 15B, Ex.PW20/B, DD No. 115B, Ex.PW20/C and DD No. 12B, Ex.PW20/D, but these were the initial information, but there is nothing against the accused and do not prove the guilt of accused as no police complaint was lodged or proceeded by the deceased or her parents against accused.

#### DEFENCE OF THE ACCUSED

110. In the statement u/s 313 Cr.P.C. (351 BNSS), accused Amit denied all the incriminating evidence put to him and took the defence that in June, 2017, he married deceased Manju in Karkardooma Court without intimating their parents as it was a love marriage and then, he and deceased started residing at their respective homes and when it was revealed to all the persons of family and locality, then parents of deceased got them married and Mausi of deceased and her parents used to tell accused to reside separately from his parents and he did not want to reside separately as his parents were poor and for that deceased used to tell him that she would implicate him in a false case and most of the time, she remained in the house of her Mausi at Agra and Digitally signed by KUMAR KUMAR RAJAT Date:

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111. In January, 2019, deceased, her mother and mausi had talked on conference call and deceased was told to reside separately. The deceased had come to her parental house on 02.02.2019 from the house of her Mausi at Agra and then, accused Amit took her to his house on 03.02.2019 and then, again she raised the same thing that she wanted to reside separately and on refusal of accused, she committed suicide on 05.02.2019 and prior to that he had called telephonically to her parents to pacify her to reside at her matrimonial home and not separately, then she locked herself and committed suicide.

112. In T Aruntperunjothi (Supra), Hon'ble Supreme Court accepted the defence of the accused that cause of death was that deceased insisted to go to her mother's house, but was not allowed, as plausible one and that there was no direct or indirect evidence as to harassment or cruelty by appellant towards deceased.

In the present case also the accused has taken the consistent defence that deceased wanted to reside separately with accused and she was being instigated by her mausi and mother, but the accused did not want to leave his parents and no violence was committed by accused to her in any manner, rather he took her immediately to the hospital when she was alive by breaking open the door with the help of neighbours and such defence appears to be plausible.

113. In Kailash Gour and Ors. Vs. State of Assam reported in MANU/SC/1505/2011, Apex Court has observed that an KUMAR Digitally signed by KUMAR RAJAT RAJAT 17:02:09 +0530 Date: 2025.05.28 accused is presumed to be innocent till he is proved guilty beyond a reasonable doubt is a principle that cannot be sacrificed on the altar of inefficiency, inadequacy or inept handling of the investigation by the police. The benefit arising from any such faulty investigation ought to go to the accused and not to the prosecution.

114. In Subramanya Vs. State of Karnataka, dt. 13.10.2022, in CrI. Appeal No. 242/2022, Hon'ble Supreme Court of India has held that it is settled principle of law that when two views are possible from the prosecution evidence, the one which is favourable to the accused shall have to be taken and the benefit of doubt shall have to be given to the accused.

The Hon'ble Supreme Court has time and again held that onus and duty to prove the case against the accused is upon the prosecution and prosecution must establish the charge beyond reasonable doubt. It is also a cardinal principle of criminal jurisprudence that if there is a reasonable doubt with regard to the accused, the accused is entitled to benefit of doubt resulting in acquittal of the accused. Reference may be made to the Judgments titled as 'Nallapati Sivaiah Vs. Sub Divisional Officer, Guntur', reported as VIII (2007) SLT 454 (SC) in this respect. Reference may also be made to the Judgment titled as 'Raj Kumar Singh @ Raju @ Batya Vs. State of Rajasthan', reported as (2013) 5 SCC 722, wherein it was held that the large distance between 'may be' true and 'must be' true, must be covered by way of clear, cogent and unimpeachable evidence produced by the prosecution, before an accused is condemned as a convict, and KUMAR Digitally signed by KUMAR RAJAT RAJAT Date: 2025.05.28 17:02:14 +0530 the basic and golden rule must be applied and the Court must

ensure that miscarriage of justice is avoided and if the facts and circumstances of a case so demand, then the benefit of doubt must be given to the accused persons.

115. In Kaliram Vs. State of HP, AIR 1973 SC 2773 which are as follow:-

Another Golden thread which runs through the web of the administration of justice in criminal cases is that if two views are possible on the evidence adduced in the case, one pointing to the guilt of the accused and the other to his innocence, the view which is favourable to the accused should be adopted. This principle has a special relevance in cases wherein the guilt of the accused is sought to be established by circumstantial evidence. Rule has accordingly been laid down that unless the evidence adduced in the case is consistent only with the hypothesis of the guilt of the accused and is inconsistent with that of his innocence, the court should refrain from recording a finding of guilt of the accused.

116. The evidence led by prosecution is not reliable, cogent and has lot of infirmities as there are lot of material variations, omissions, inconsistencies and contradictions in the testimonies of all the public and other witnesses led by the prosecution and thus, prosecution could not prove all the ingredients of Section 498A & 304B IPC against the accused beyond reasonable doubt.

## CONCLUSION

117. In the totality of the circumstances brought on record by way of evidence, it is observed that the prosecution has failed to prove its case beyond reasonable doubt against the Amit qua offences punishable u/s 498A/304B IPC, thus, a benefit of doubt is given to the accused on the basis of above-noted principles and facts established on record.

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118. Consequently, the accused Amit is acquitted of the offences u/s 498A/304B IPC.

File be consigned to Record Room after necessary compliance. Digitally signed by KUMAR KUMAR RAJAT PRONOUNCED IN OPEN COURT RAJAT Date:

2025.05.28 ON THIS 28th DAY OF MAY 2025. 17:02:24 +0530 (KUMAR RAJAT)  
ASJ-07, Shahdara, KKD Delhi/28.05.2025